

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 4

City of Waterville

Appendix 1D

Committee Charge: Haines Charity Committee [Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville Haines Charity Ordinance (Chapter 35)

City of Waterville Resolution 138-2011

1 M.R.S., Chapter 13, Freedom of Access

City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

William T. Haines provided for the established of a trust fund in his will to be used annually for the relief of such poor, destitute and unfortunate women and children in need of financial assistance.

Membership.

Membership consists of three citizens who shall be appointed by the Mayor and confirmed by the City Council for three-year terms.

Scope of Authority.

The Committee shall meet as required after notice from the City's Health and Welfare Director and may establish guidelines for the distribution of the fund monies, provided said decisions are substantially in keeping with the terms of the Trust and not in conflict with state or federal laws.

The Director will work with the Committee to review requests and ensure that decisions made are recorded and kept in a confidential manner as with other General Assistance matters.

Pursuant to the approval of Resolution 138-2011, the City Council authorized the creation of a fund for meeting the basic needs (food, clothing, shelter) of women and children at the Mid-Maine Homeless Shelter in the amount of \$250,000. These funds will be managed separately, and interest earned will be credited to this account.

The Committee is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Committee is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public, to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record; however, meetings and documents regarding General Assistance matters may be confidential or closed to the public in accordance with state statute.

No member of the Committee may participate in a matter before the Committee where that member has a conflict of interest. If a question arises as to whether a member has a conflict of

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interest, after disclosure, the remaining members shall make that determination. The Committee may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions. Investments of fund proceeds are the responsibility of the City's Finance Director, who shall ensure that said funds are segregated from other City funds in a manner so as to be able to clearly identify income earned, with the priority of protection of the principal.

Reporting.

The City's Finance Director shall report to the City Council on an annual basis regarding income earned from the fund and expenditures approved. Reporting of disbursements can be in a summary format without disclosure of the identity of the recipients.